

9	Torres vs. Alcala 2023-01324923	Motions to Compel Production Defendant Truist Bank's motion to compel Plaintiffs Marty Torres' and Carlos Martinez's further responses to its requests for production of documents, set one, is granted. Defendant's request for sanctions is denied as it was not included in the notice of motion pursuant to Code Civ. Proc., § 2023.040. Plaintiffs' request for judicial notice is denied as a request for judicial notice must be made in a separate document. (CRC, Rule 3.1113.) Defendant Truist Bank seeks information regarding Decedent Lupy Martinez's medical history, in light of Plaintiffs' allegations that Decedent was incapacitated, and subject to undue influence and elder abuse. In opposition, Plaintiffs do not dispute that they are claiming this, arguing that Defendants Diana and Robert Alcala through conduct determined to be elder abuse by the probate court tricked Decedent into gifting them her home. (Opposition at 2:2-4.) Defendant has shown the medical information requested is relevant to these claims and while arguably private and privileged, it is discoverable. (See gen. <i>Britt v. Sup.Ct.</i> (1978) 20 Cal. 3d 844; <i>Pioneer Electronics (USA), Inc. v. Sup.Ct.</i> (2007) 40 Cal. 4th 360; <i>In re Lifschutz</i> (1970) 2 Cal.3d 415, 433.) The issue is whether the Probate Court's determination of Plaintiffs' Petition as to the decedent's will precludes this discovery. Specifically, on 6/14/22, the Probate Court decided the plaintiffs' Petition for (1) Invalid Will, (2) Undue Influence, and (3) Financial Elder Abuse, finding in Plaintiffs/Petitioners' favor after the Respondents (Diana Alcala and Robert Alcala) failed to oppose. The Court ruled that the real property located at 9171 Jennrich Ave., Westminster, CA 92683 was to be returned to Lupy Martinez's estate for administration. (Plaintiffs' Ex. 2.) Based on Code Civ. Proc., § 1908, Plaintiffs argue that Defendant fails to show good cause for the discovery because the Probate Court's Order renders the documents irrelevant and that Truist Bank cannot relitigate the issue of who is entitled to the subject property. Whether or not Code Civ. Proc., § 1908 does in fact preclude any claims or defenses that Defendant may have based on principles of estoppel or res judicata has not yet been determined in this court.
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		Code Civ. Proc., § 1908 does not preclude discovery or limit the scope of discovery. Rather, Code Civ. Proc., § 2017.010 is quite broad and provides that “any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence.” Moreover, it is Plaintiffs who brought this action alleging elder abuse, undue influence, incapacity, etc. in support of their claims of quiet title and requests for damages for conversion and negligence. Given this, the Court finds that Defendant has shown good cause to compel further responses. Defendant’s separate request for the Court order Plaintiffs to provide medical authorizations for Decedent’s records is denied. There is no legal authority cited that provides that a Court can compel a party to sign such authorizations. Plaintiffs are ordered to serve further responses within 20 days of service of notice of this ruling. Defendant shall give notice.
10	Trinh vs. Chan 2023-01342035	Motion for Summary Judgment and/or Adjudication Continued to 10/05/2026
11	Valdez vs. Physician Partners of America, LLC 2024-01437568	Motion for Summary Judgment and/or Adjudication Off Calendar
12	Wilson vs. Dan 2025-01523063	Motion for Order Requiring Plaintiffs to Furnish Security Bond Defendants Claudiu Dan, Ariel Corral, Julio Lopez, Martin Martinez, and Samuel Membreno’s renewed motion for order requiring Plaintiffs to furnish security bond is denied. <u>Procedural Issues</u> The Court notes that there are valid objections to the length of the “motion” and Defendants’ supporting evidence, not to mention the tardiness of the reply papers. However, in the interests of justice, and for sufficient “good cause,” the Court exercises its discretion to